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TENTATIVE RULINGS
August 6, 2026

#	Case Name	Tentative
1.	30-2025-01522484-CU-OE-CJC Kazarian vs. Freight Management, Inc.	Before the Court is a Motion to Compel Further Responses to Request for Production. ROA 29. On May 22, 2026, Plaintiff Karen Kazarian (“Plaintiff”) filed the instant Motion to Compel Further Responses to Request for Production against Defendant Freight Management, Inc. (“Defendant”). ROA 29. Plaintiff requests that the Court grant his motion and impose sanctions against Defendant in the amount of \$750. ROA 29. Defendant request that the Court deny Plaintiff’s motion in its entirety and impose sanctions in the amount of \$2,100 against Plaintiff. ROA 54. I. Motion to Compel Further Responses

		Requirements Responses to interrogatories, requests for production, and requests for admission must be signed under oath by the responding party. Cal. Civ. Proc. Code §§ 2030.250(a), 2031.250(a), 2033.240(a). If any response contains an objection, the attorney must also sign the response. Cal. Civ. Proc. Code §§ 2030.250(c), 2033.240(c), 2031.250(c). Accordingly, if a response consists entirely of objections, only the attorney must sign. For hybrid responses (those that contain both an answer and objections), the responding party must verify their portion, and the attorney must sign the objection. <i>Food 4 Less Supermarkets, Inc. v. Super. Ct.</i>, 40 Cal. App. 4th 651, 657-58 (1995). Unverified responses served within the discovery deadline are not code compliant. <i>Id.</i>; see <i>Melendez v. Super. Ct.</i>, 215 Cal. App. 4th 1343, 1348 (2013) (stating “an unverified response is tantamount to no response at all.”); see also <i>Laguna Auto Body v. Farmers Ins. Exch.</i>, 231 Cal. App. 3d 481, 489 (1991) (citing the lower court’s finding that unverified responses are “legally invalid.”) Importantly, the forty-five (45) day limit for the propounding party to file a motion to compel further responses to interrogatories and requests for admissions, pursuant to California Code of Civil Procedure Sections 2030.300 and 2033.290, respectively, does not begin until the responding party provides verified responses or verification of previously supplied responses. <i>Golf & Tennis Pro Shop, Inc. v. Super. Ct.</i>, 84 Cal. App. 5th 127, 135 (2022); Cal. Civ. Proc. Code §§ 2030.300(c), 2033.290(c). The issue before the Court is whether Defendant served valid verified responses on January 21, 2026, such that the 45-day deadline commenced on that date. Plaintiff advances two arguments in support of its contention that the January 21, 2026, responses did not trigger the deadline. The Court addresses each below. Plaintiff first contends that Defendant’s responses were not code compliant because counsel’s signature on the objections was dated January 21, 2025, and the
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		accompanying verification was executed on January 19, 2026, two days before service of the responses on January 21, 2026. ROA 58. Plaintiff argues these purported defects prevented the responses from triggering the 45-day deadline. <i>Id.</i> The Court disagrees. In this Court's view, the incorrect year appearing on counsel's signature is a clerical error that does not invalidate the objections or the response as a whole. Plaintiff cites no authority holding that an incorrect year on counsel's signature renders a discovery response invalid where the response was otherwise properly served. Plaintiff's argument regarding the verification similarly lacks support. Plaintiff assumes that because the verification was executed on January 19, 2026, and the responses were served on January 21, 2026, the responses necessarily were incomplete when the verification was signed. ROA 58. Plaintiff then concludes that the verification was improperly "pre-executed" and relies on <i>Drociak v. State Bar</i> to argue that the allegedly improper verification never triggered the 45-day deadline. <i>Id.</i> This conclusion does not follow from the cited authority. <i>Drociak</i> involved an attorney disciplinary proceeding arising from counsel's use of blank, pre-signed verifications <i>without</i> first consulting with the client to confirm the truth of the discovery responses. <i>Drociak v. State Bar</i>, 52 Cal.3d 1085, 1087 (1991). Nothing in <i>Drociak</i> holds that a verification must be executed <i>on the same day</i> responses are served or that responses become invalid merely because the verification predates service. Plaintiff presents no evidence that the responses were incomplete when verified, that the responses were altered after execution of the verification, or that the verification failed to confirm the truth of the responses. ROA 58. Plaintiff's argument therefore relies on speculation rather than authority.
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	Plaintiff next argues that Defendant's March 6, 2026, document production was unverified and therefore did not trigger the forty-five (45) day deadline. ROA 58. This argument confuses a discovery response with the production of documents itself. A response to a request for production is distinct from the subsequent production of documents. See <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1352 (2023). The response must comply with the verification requirements; the production itself does not require a separate verification. See <i>Pollock, supra</i>, 93 Cal. App. 5th at 1358 (holding that “[t]here is no requirement that a document production be verified.”). Here, Defendant served verified responses on January 21, 2026. ROA 50. Defendant was not required to separately verify the documents produced on March 6, 2026. Accordingly, the forty-five (45) day deadline began on January 21, 2026. Plaintiff did not file the present Motion to Compel Further Responses until May 22, 2026, approximately <i>seventy-six (76) days after</i> the deadline expired. ROA 29. Accordingly, Plaintiff’s Motion to Compel Further Responses to Request for Production is untimely and DENIED. II. Mandatory Sanctions The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or <i>opposes</i> a motion to compel response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2031.300(c). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (<i>quoting Doe v. United States Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)).
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	To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996); See also Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i> at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Plaintiff’s lack of substantial justification, sanctions are mandatory. III. Sanctions Amount Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court’s analysis here is reasonableness. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction to reach a reasonable award. <i>Id.</i> at 791 (citing <i>Parker supra</i>, 149 Cal. App. 4th at 294). Having weighed the three aforementioned principles, the Court finds that the sanctions in the amount of \$2,100 sought by the responding party are unreasonable. The Court exercises its discretion to reduce the sanctions amount to \$1,800.
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		Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production (ROA 29) is DENIED. Additionally, the court IMPOSES sanctions in the amount of \$1,800 against Plaintiff Karen Kazarian due and payable to Atkinson, Andelson, Loya, Ruud & Romo within eighty (80) days of receiving notice. Defendant to give notice.
2.	30-2025-01462253-CU-BT-NJC CA New Generation Insurance Services, Inc. vs. Mufti	Before the Court is a Motion to Compel Compliance, and Sanctions, brought by Plaintiff CA New Generation Insurance Services, Inc. ("Plaintiff") against Defendant Faisal al-Mufti ("Defendant"). ROA 78 The underlying complaint alleges violations of California Penal Code Section 502 [unauthorized access to computers, computer systems and computer data], unfair competition, misappropriation of trade secrets, tortious interference with business contract, and intentional interference with prospective economic advantage. ROA 12. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(4), 2030.300, and 2031.310, compelling Defendant to comply with the Court's May 26, 2026, discovery order that ordered Defendant to provide verified, code compliant responses, inclusive of document production and privilege log, to Plaintiff's Requests for Production ("PROD"), Set One, Plaintiff's Form Interrogatories ("FROG"), Set One, Nos. 15.1 and 17.1, within five (5) days of receiving notice of the Court's Order. ROA 78, p.2; ROA 55; ROA 54; ROA 65. Plaintiff also requests that the Court order Defendant to submit all computers, mobile devices, external drives, electronic storage media, email accounts, cloud-storage accounts, Guild Insurance Agency ("GIA") systems, Agency Matrix/ZyWave accounts, and other repositories of electronically stored information reasonably likely to contain responsive information to a neutral third-party forensic examiner within five (5) calendar days of entry of the Court's order, with Defendant